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Case Number: 21SMCV01401 Hearing Date: July 2, 2026 Dept: M

CASE NAME: Bowmont

Holdings, LLC, et al., v. CAS Construction, et al.

CASE NO.: 21SMCV01401

MOTION: Motion

for Summary Judgment/Adjudication;

Motion

to Compel Furthers;

Motion

to Compel Deposition; and

Motion

for Good Faith Settlement

HEARING DATE: 7/2/2026

SUMMARY

JUDGMENT ANALYSIS

Legal Standard

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the

parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (CCP, § 437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1544.) "[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to" subdivision (t). (CCP, § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (CCP, § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (Murillo v. Rite Stuff Food Inc. (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, "[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment..." (Gold v. Weissman (2004) 114 Cal.App.4th 1195, 1198-99.) "In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true." (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion "may not be denied on grounds of credibility," except when a material fact is the witness's state of mind and "that fact is sought to be established solely by the [witness's] affirmation thereof." (CCP, § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party "to show that a triable issue of one or more

material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468.)

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)

Noticed
Issues

Defendants City of Los Angeles and Los Angeles Department of Water and Power (collectively, the City) move for Summary Judgment or in the alternative, Summary Adjudication, against Plaintiffs Bowmont Holdings, LLC, Haig Tacorian and Glinda Tacorian’s Complaint. The City notices the following four issues:

ISSUE 1: Plaintiffs’ Eighth Cause of Action for dangerous condition of public property under Government Code section 835 fails because (1) the Plaintiffs’ property is not a public improvement maintained or controlled by Defendants; (2) Defendants did not cause the Landslide that damaged Plaintiffs’ property; (3) Plaintiffs have no evidence of a substantial risk of injury and/or (4) Defendants had no notice of any alleged dangerous condition that could have caused the damage to Plaintiffs’ property.

ISSUE 2: Plaintiffs’ Ninth Cause of Action for nuisance fails because (1) Plaintiffs fail to state the existence of an authorizing statute or any statutory duty necessary to state a cause of action against a governmental entity for common-law nuisance; and/or (2) Defendants

did not cause the Landslide that damaged Plaintiffs' property.

ISSUE 3: Plaintiffs' Tenth Cause of

Action for Inverse Condemnation fails because (1) the Plaintiffs' property is not a public improvement maintained or controlled by Defendants; (2) Defendants cannot be liable for the exacerbated instability of the property caused by private construction activities; (3) Defendants cannot be held liable for the natural conditions of the property; and/or (4) Defendants did not cause the Landslide that damaged Plaintiffs' property.

ISSUE 4: Plaintiffs' Eleventh Cause

of Action fails because (1) Plaintiffs fail to state the existence of an authorizing statute or any statutory duty necessary to state a cause of action against a governmental entity for common-law trespass; and/or (2) Defendants did not cause the Landslide that damaged Plaintiffs' property.

Evidentiary Objections

Plaintiff's objection no. 2 to the

Duke Declaration, paragraph 10 is SUSTAINED as conclusory and unsupported expert opinion. Steve Duke does not offer an explanation or basis for the opinion that the erosion is not part of the ancient landslide below the Subject Property.

Plaintiffs' objection nos. 25-29

and 31 are SUSTAINED (hearsay).

The City's objections to the Hodson

declaration are SUSTAINED as to no. 23.

The City's objections to the Lawson

declaration are SUSTAINED as to no. 14.

The City's objections to the Colson

declaration are SUSTAINED as to no. 8.

In sum, Plaintiffs' submitted

expert declarations do not provide adequate foundation for their opinions on causation. "[A] properly qualified expert may offer an opinion relating to a subject that is beyond common experience, if that expert's opinion will assist

the trier of fact.” (Sanchez v. Kern Emergency Medical Transportation Corp. (2017) 8 Cal.App.5th 146, 155.) “However, even when the witness qualifies as an expert, he or she does not possess a carte blanche to express any opinion within the area of expertise. [Citation.] For example, an expert’s opinion based on assumptions of fact without evidentiary support [citation], or on speculative or conjectural factors [citation], has no evidentiary value [citation] and may be excluded from evidence. [Citations.] Similarly, when an expert’s opinion is purely conclusory because unaccompanied by a reasoned explanation connecting the factual predicates to the ultimate conclusion, that opinion has no evidentiary value because an ‘expert opinion is worth no more than the reasons upon which it rests.’” (Id., emphasis added.) “An expert who gives only a conclusory opinion does not assist the jury to determine what occurred, but instead supplants the jury by declaring what occurred.” (Id. at 155.) Plaintiffs’ experts speculate on the existence of a leak in the pipe infrastructure which could have theoretically contributed to the slope instability. The experts (and Plaintiffs) do not show that such a leak actually existed, or when/where such a leak occurred, such that the leak could have contributed to the slope instability. For example, Hodson does not adequately explain why he believes that it is more likely than not that Water Tank No. 2’s Drainage Pipes are causing water to get into the slope. At best, the experts establish there might be leaks somewhere along the pipe, but they do not know where such leaks are located or when they arose. Thus, they cannot conclude that such a leak would necessarily cause water to go onto the slope and thus substantially contribute to the slope failure.

As to the Goltz declaration, Mr.

Goltz does not make a conclusion regarding causation. He only posits the mere possibility that leaks or releases from the Water Tank could cause water to get onto the slope, without stating that a leak caused water to get onto the slope. As to the conclusions that are reached, the Court sustains objections nos. 1-2, 20-21, and 28 as speculative/conclusory as to causation.

The City’s objections to the Tacorian declaration are SUSTAINED as to nos. 11-13.

The remaining objections are
OVERRULED.

Issue nos. 1 and 3: Dangerous Condition and Inverse
Condemnation

The City argues that it did not cause the Landslide that damaged Plaintiffs' Property, Plaintiffs have no evidence of a substantial risk of injury, and it had no notice of any alleged dangerous condition that could have caused the damage to Plaintiffs' property. The issue of causation affects each viable cause of action stated against the City, most importantly the dangerous condition and inverse condemnation causes of action.

"[P]ublic entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2, but instead by the specific provisions set forth in sections 830-835.4." (Van Kempen v. Hayward Area Park etc. Dist. (1972) 23 Cal.App.3d 822, 825.) Government Code section 835 provides that "a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) [a] negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) [t]he public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." (Gov. Code, § 835.) Section 830 defines a "dangerous condition" as "a condition of property that creates a substantial . . . risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used." (Id., § 830(a).) A claim alleging a dangerous condition of public property ultimately must establish a physical deficiency in the property itself. (Mixon v. Pacific Gas & Electric Co. (2012) 207 Cal.App.4th 124, 131.) (Id.) A dangerous condition exists where the property is "physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property, or possesses a physical characteristic in its design, location, features or relationship to its surroundings that endanger users." (Id.) The existence of a dangerous condition is ordinarily a question of fact but can be decided as a matter of law if reasonable minds can come to only one conclusion. (Id. at 148.) A public entity had actual or constructive notice of a dangerous condition if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character. (Gov. Code, § 835.2 (a); see Martinez v. City of Beverly Hills (2021) 71

Cal.App.5th 508, 519 [there must be some evidence that the employees had knowledge of the particular dangerous condition in question].) A public entity had constructive notice of a dangerous condition only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character. (Gov. Code, § 835.2(b).)

To state a claim for inverse condemnation, a plaintiff must show: (1) that plaintiffs own or have a similar property interest in real property; (2) the property was taken or damaged; (3) by a public project; and (4) causation. (*City of Oroville v. Superior Court* (2019) 7 Cal.5th 1091.) A plaintiff must show that “[a] ‘deliberate action’ undertaken by a public entity ‘in furtherance of public purposes’—including . . . a public improvement such as a water system or a flood control—” triggered the inverse condemnation action. (*Id.* at 1103.) There must be a causal nexus between an “inherent risk” in the design or construction of the public improvement and the harm in question, whether it was intentional or the result of negligence by the public entity. (*Id.* at 1103–1104; see *Goebel v. City of Santa Barbara* (2001) 92 Cal.App.4th 549, 555 [public improvement must be a “substantial cause of the injury”]; *Ullery v. County of Contra Costa* (1988) 202 Cal.App.3d 562, 572 [“Liability in inverse condemnation may be shown where the public improvement was a substantial concurring cause of the damage.”]; *Tri-Chem, Inc. v. Los Angeles Cnty. Flood Control Dist.* (1976) 60 Cal.App.3d 306, 311 [the public improvement must at least exacerbate the preexisting occurrence].)

The Second Amended Complaint (“SAC”) alleges the City is liable for the damages suffered by Plaintiffs, caused by the dangerous conditions of its property, including but not limited to, the dangerous conditions of the water supply lines, sewer lines, storm drains, fire hydrants, curbs and rain gutters on public streets that service the Property. (SAC ¶ 89.) The City allegedly owns, controls, and is responsible for the maintenance, repair, control and installation of water supply lines, sewer lines, storm drains, fire hydrants, curbs and rain gutters on public streets that service the Property. (SAC ¶ 90.) The water supply lines, sewer lines, storm drains, fire hydrants, curbs and rain gutters on public streets that service the Property, and owned by the City, were in a dangerous condition at the time of Plaintiffs’ injuries, in that said water supply lines, sewer lines, storm drains, fire hydrants, curbs and rain gutters were repaired and/or

maintained in a manner that allowed excess water (ground and surface) to enter the Property, causing damage. (SAC ¶¶ 91-92.) Those dangerous condition(s) created a reasonably foreseeable risk of the kind of injury that occurred at the time of Plaintiffs' injuries, including but not limited to, when earth movement occurred at the Property. (SAC ¶ 93.) The City had notice of said dangerous conditions for a long enough time to have protected Plaintiffs from the reasonably foreseeable risk of the kind of injury that occurred at the time of Plaintiffs' injuries, including but not limited to, when earth movement occurred at the Property. (SAC ¶ 94.) The inverse condemnation action incorporates the prior allegations, and states that the City's conduct deprived Plaintiffs of all economically viable use of the subject Property and was a substantial factor in causing Plaintiffs' harm. (SAC ¶¶ 109-113.)

The City meets its burden of production to negate the alleged causation as to the dangerous condition and inverse condemnation actions, as well as actual or constructive notice of any dangerous condition. The City submits evidence that no water could have leaked from its infrastructure, including Water Tanks nos. 1 and 2 or the Tanks' pipelines. First, the City extensively discusses the history of the water tanks atop Coldwater Canyon. (UMF 1-45.) Notably, the 1994 Northridge Earthquake damaged the Water Tank no. 1 resulting in water leaking from the tank and flowing (1) west across Bowmont toward Eden Drive and (2) north across Mulholland Drive. (UMF 5.) The water flow to the west formed an erosion gully about 800 feet to the north of where Plaintiffs' property would eventually be located. (UMF 6.) The topography of the surrounding area meant that any water leaking from Tank No. 1 because of damage resulting from the Northridge Earthquake would have flowed north toward Mulholland Drive or west toward Eden Drive, not south on Bowmont Drive toward the hillside where Plaintiffs built their mansion. (UMF 7.) The tank was repaired and eventually replaced in approximately the same location, coming into operation in 1999. (UMF 8-22.) Since entering service, Tank No. 2 has had no structural failures, ruptures, uncontrolled releases of water, or slope failures attributed to its operation. (UMF 24.) All the pipes running to and from Tank No. 2, including those to and from the catch basin, operate without issue or evidence of leaks. (UMF 25.) Any pipes, which serviced Tank No. 1 but not used for Tank No. 2 were decommissioned to prevent water flow. (UMF 26.) LADWP regularly conducts a variety of inspections which found no significant leaks or issues before the 2019 and 2020 landslides. (UMF 27-36.) Any issues discovered during inspections were fixed, and no work orders relate to water leaking down Bowmont toward Plaintiffs' property. (UMF 33.) Tank No. 2 also has an alarm system to monitor its water levels and ensure the pipes directing water to and

from the tank do not leak. (UMF 37-39.) Not once did these alarms trigger an investigation by the LADWP about a subsurface leak, (UMF 40-45.) When the system experienced issues, LADWP fixed the issues and did not discover any leaks. (SSUMF 44.)

Next, the City turns to other potential sources of water. The City notes an undocumented 12-inch PVC pipe, purportedly dispensing water into the ground under and around the Property, which Plaintiffs identified in discovery. (UMF 92.) The City explains that LADWP has no record of a 12-inch pipe from the Coldwater Canyon Tank underneath Bowmont Drive. (UMF 93, 97-99.) In any event, the City presents testimony that there is no evidence of leaks from fire hydrants or drainage pipes near the property prior to the subject slope failures. (UMF 100-102.) Otherwise, any water intrusion is attributable to other parties' conduct, such as damaged curbing, leaks from private sewer lines and storm drain infrastructure not owned, controlled or maintained by the City. (UMF 103-113.) Ultimately, the undisputed facts establish that the Tanks were not the cause of Plaintiffs' injuries, since there were no leaks and the controlled releases should not have gone down Bowmont Drive toward Plaintiffs' property given the topography. (UMF 95-96.) The City instead blames the combination of heavy rainwater, heavy watering, removal of vegetation from the slope, and construction of a large mansion on the Property. (UMF 46-90.)

Plaintiffs fail to present specific and substantial evidence that the public improvements, such as the Water Tanks, drainage pipes or fire hydrants, caused any water to migrate onto Plaintiffs' property, such that the water from those public improvements substantially contributed to the slope failures. Principally, Plaintiffs cite evidence of a subsurface PVC drain-line connected to Water Tank No. 2's drainage system which runs along Bowmont. Plaintiffs also note that there are several potential sources of water near the Property, including at a dissipation box adjacent to the site, observed water outflow at the bottom of the slope onto Gloaming Way, and fire hydrants along Bowmont Drive. Plaintiffs attempt to present expert opinions linking those facts to slope instability that caused the alleged slope failure. (Hodson Decl., ¶¶ 10-23; Goltz Decl., ¶¶ 9-16; Colson Decl., ¶¶ 6-11; Lawson Decl., ¶¶ 6-11.) However, as discussed in the objection section, no expert (or other evidence) establishes that the pipe under Bowmont or fire hydrants nearby leaked water onto the Property's slope at all, let alone before 2019/2020. For instance, Hodson identifies two leaks at water-main connections to two fire hydrants located adjacent to Bowmont Drive and identifies a

constant flow of water from the drainage structure located at the west edge of the slope of the Property which discharges at the bottom onto Gloaming Drive. (Hodson Decl., ¶ 12.) He also notes that the drainage pipes have soil, mud, and debris within the existing pipes blocking the camera, such that video inspection could not be completed. (Id., ¶ 14.) This evidence suggests some negligence by the City in maintaining these pipes, but Hodson only speculates that the damaged drain line in this section of Bowmont Drive would provide a pathway for city water to enter the ground upgradient. (Id., ¶ 15.) The source of the constant water flowing onto Gloaming Drive is “unknown.” (Id., Ex. 6 [see finding 4].) Again, there is no evidence establishing the drain is damaged where water could leak onto the slope. Likewise, Plaintiffs’ other experts testify that if water from LADWP’s tank drainage/overflow system, water mains, hydrants, or related infrastructure entered the subsurface upgradient of or adjacent to the failure area, that water would be a substantial cause. (Lawson Decl., ¶ 10; Colson Decl., ¶ 10.) Goltz opines that water infrastructure could cause water to get onto the Slope, and as a result, could contribute to the slope failures. (Goltz Decl., ¶¶ 16, 23.) Again, the mere speculative possibility that a theoretical leak could contribute to the slope is not substantial evidence that water from infrastructure went into the subsurface upgradient, of or adjacent to, the failure area of the slope. Plaintiffs also fail to present any evidence regarding whether the 1994 earthquake could have caused water from Tank no. 1 to flow onto the Property which substantially contributed to the slope failure 25 years later.

With that

said, there are disputes of fact, but the Court would conclude that those disputes are not material. For instance, Plaintiffs present disputes of certain UMFs, e.g., UMF 93 and 97-99. The City only presents evidence that suggests that the pipe does not exist or is not controlled by the City. In contrast to UMF 93, 97-99, there is a waterline underneath Bowmont connected to Water Tank no. 2. This disputes a “material” fact. However, Plaintiffs only present evidence that this line could have a leak, which could cause water to go to the subject slope. Thus, the presented evidence in opposition does not establish a material dispute as to causation. Similarly, Plaintiffs evidence regarding washouts and voids in the pipes fail to connect those voids to leaks onto the property.

Additionally, regarding the statutory dangerous condition claim, Plaintiffs do not present evidence of actual or constructive notice of the cited leaking PVC pipe. Plaintiffs present

no information concerning the supposed leak aside from the possibility that it exists in 2026. Plaintiffs point to no evidence which could have put the City on notice that there was a leak prior to the slope failures. Plaintiffs cite evidence concerning issues with Tank no. 2 itself, such as the "C" grade in 2012 and an elevation (19-foot) discrepancy in 2019, which appear unrelated to any leaks that could affect Plaintiffs' property. Plaintiffs also cite the City's failure to accurately record the PVC pipe, but this too does not suggest that the City had notice of any leak from the PVC pipe. Thus, Plaintiffs have not established the leak existed for any substantial period of time prior to 2019, and was of such an obvious nature that the City should have discovered the condition in the exercise of due care.

Accordingly, the court would tentatively adjudicate issue nos. 1 and 3 in favor of the City.

Issue 2, 4: Common Law Claims

Plaintiff improperly brings common law causes of action for trespass and nuisance against a public entity. Public entities such as the City cannot be held liable for such claims. (*McCarty v. State of California Dept. of Transp.* (2008) 164 Cal.App.4th 955, 975; accord *Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 686 ["In California, a public entity is not liable for an injury arising from an act or omission of the public entity or a public employee except as provided by statute. (Gov. Code, § 815.) Thus, a common law negligence claim may not be asserted against the County."].) Plaintiffs could only potentially recover on the other claims stated, such as the Gov. Code section 835 or inverse condemnation claim.

Accordingly, the court would grant the City's motion as to issue nos. 2 and 4.

Conclusion

Accordingly, the motion for summary judgment is GRANTED.

DISCOVERY ANALYSIS

The ruling on the City's Motion for

Summary Judgment moots the discovery disputes between the City entities and Plaintiffs. If the Court was to deny the motion, in whole or in part, the Court would deny the City's motions to compel further, since the answers are generally code compliant and non-evasive.

At most, with respect to the requests for production ("RPDs"), they might be considered evasive to the extent that the responses agree to produce all non-privileged documents in Plaintiffs' possession, custody, and control "that have not already been produced in this matter." Plaintiffs should have moved to compel compliance under section 2031.280(a), to identify previously produced documents that were responsive to the RPDs at issue.

The Court would have denied Plaintiffs' motion to compel the deposition of the City's counsel for failure to show "extremely" good cause for such a deposition. Other sources of information are available to reveal relevant evidence concerning the investigation/tests of the leaks. Counsel's testimony would not be crucial to this case since the testimony would be on a tangential discovery issue.

As to sanctions, Defendants request \$3,728.33 per motion, and they did not oppose the motion to compel deposition testimony. Plaintiffs request \$2,550.00 as to the motion to compel deposition and they did not notice any counter-sanctions as to the motion to compel further. In light of the mixed success on the parties' motions, the Court would find that reasonable sanctions would effectively cancel each other out (the City would have lost two motions to compel further, and Plaintiff would have lost one motion to compel further and the motion to compel deposition. Thus, no sanctions are awarded.

GOOD FAITH

SETTLEMENT ANALYSIS

Legal Standard

In an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt, a party to that action may file a motion seeking a determination from the court that the settlement between the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors was made in good faith. (CCP § 877.6(a).) The notice of motion or application for good faith determination must list each party and

pleading or portion of pleading affected by the settlement and the date on which the affected pleading was filed. (CRC Rule 3.1382.)

The California Supreme Court in *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal.3d 488, established the standard for determining whether a settlement was made in good faith. Under *Tech-Bilt*, the following factors are considered: (1) a rough approximation of plaintiff's total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants. (*Id.* at 498-501.) Additionally, the evaluation must be made based on the information available at the time of settlement. (*Id.* at 599.)

Where good faith is uncontested, a "barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient." (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261 [holding that when no one objects to a motion for good faith determination, a barebones motion that sets forth the ground of good faith, accompanied by a declaration that set forth a brief background of the case was sufficient in action where motion only discussed two of the *Tech-Bilt* factors, settlement amount and policy limits and declaration only gave a brief background of the case].)

If the court makes a good faith determination, the court may dismiss the settling party from comparative indemnity claims if the settling party has made such a request at the time of making the good faith motion. (CCP §§ 877, 877.6(c); CRC 3.1382.)

Discussion

Defendant/Cross-Defendant Pacific Rim Grading Inc. moves for a determination that its settlement with Plaintiffs Bowmont Holdings LLC, Haig Tacorian and Gilda Tacorian was made in good faith per CCP section 877.6. The motion is unopposed. Thus, a "barebones motion" is sufficient. (*Grand Terrace*, supra, 192 Cal.App.3d at 1261.) Defendant's notice provides each party and pleading affected by the settlement. Defendant's motion and

declaration provide the background of the case, the procedural history of the case, and a basis for the Tech-Bilt factors described above. The settlement for \$2 million was reached after an arm's length negotiations before a neutral mediator. The settlement therefore appears to be in the "ballpark" of a good faith settlement under the circumstances.

The Court therefore finds the settlement was made in good faith. (CCP § 877.6(a).) Accordingly, Defendant's motion is GRANTED.